AUTHOR'S REVIEW COPY

THE SECOND MONOPOLY

The Patent Expired. The Exclusion Didn't — *and It Doubled the Cost of American Living.*

How a Constitutional Bargain Was Cancelled —
Restoring It Frees Buyers from Surveillance,
Stops Robots Replacing America's Drivers & Operators,
and Returns the Joy of Operating Real Machines



THE FIRST MONOPOLY ENDS



THE SECOND HOLDS EXPIRED-PATENT COPIES TO NEWER, IMPOSSIBLE-TO-MEET RULES

One Supreme Court ruling could open the lock. Five years on, the household that chooses brand-new machines built to proven 20-year-old designs recovers a third to half of what it now spends on them. This book shows who can file, and how.

ROLEIGH MARTIN

Foreword by Gord Magill, author of *End of the Road: Inside the War on Truckers*

Why does a new pickup cost $72,495 when the 2005 design it replaced could be built new, by anyone, for about half?

Roughly 90 countries permit a brand-new truck, tractor or washing machine built to a proven 20-year-old design. No American may buy one. The patents on those designs have expired, so patent law does not stand in the way. A federal rulebook does, and this book shows that the rulebook breaks a limit the Constitution set in 1787.

Where the Hope Is

Voters who rallied to MAGA and MAHA wanted living made affordable and Americans made healthy. Those who no longer expect either from Congress or a president will find firmer ground here: the Constitution's text, the Supreme Court's own rulings, and legal AI that lets any citizen test a federal rule against both. Ordinary people have won at the Court what no legislature gave them. Two raisin growers did it in Horne v. Department of Agriculture (2015), a 94-year-old woman in Tyler v. Hennepin County (2023), and family-owned herring boats in Loper Bright Enterprises v. Raimondo (2024). What one administration relaxes the next can restore. A Supreme Court ruling binds every administration. There is a second difference. The Court holds itself to its own past rulings: it has overturned an earlier decision in fewer than 1 percent of its cases, and it gives its reasons when it does. A Congress or a President owes predecessors nothing. That is why the book rests on more than 95 of the Court's rulings and not on a platform. It is also the branch Americans trust most: in Gallup's September 2026 survey, 46% expressed trust in the judicial branch, against 33% for the executive and 28% for the legislative.

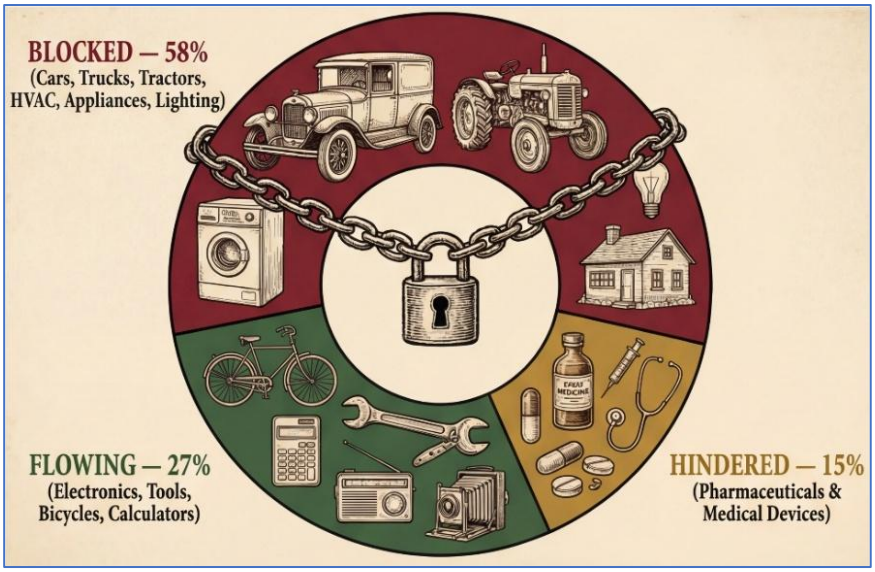
The Bargain

A patent is a bargain Thomas Jefferson described. The inventor gets the sole right to make an invention for a limited time, now 20 years. The public gets two things in return. The patent filing shows everyone how the invention works, and when the time runs out anyone may make it. Competition then brings the price down. That is why a generic drug costs a tenth of the brand. The electric drill sold for $230 when Black & Decker patented it in 1917, more than $5,000 in today's dollars. It now sells for $45 under that name and $21 under a dozen others.

The bargain is in the Constitution. Article I lets Congress promote invention by "securing for limited Times to Authors and Inventors the exclusive Right." Those words date from 1787, two and a half years before the first patent law. They are therefore a limit on securing exclusivity by any means, not merely a rule for patent statutes. For 183 years no second federal power crossed that limit in ordinary commerce. In 1807 President Jefferson wrote that an inventor should have a right "for some certain time." It "ought not to be perpetual," he added, because that would "embarrass society with monopolies for every utensil existing." The book calls this Jefferson's Bargain.

When Barriers Were Created to Block Patent-Expired Remakes

Federal energy, emissions and safety rules now require anything newly built to meet the newest standards. A faithful copy of a 20-year-old design cannot meet them without newly patented parts, and with them it is no longer free to build. So no one may build it, not even the original maker. Ford cannot build the 2005 F-150 again.



Patents expire on schedule. The exclusion has no end date. It reaches an estimated 58% of what households buy, once a design is 20 or more years old. It is the second monopoly of the title. The Constitution secures "the exclusive Right," measured by the public it shuts out, and only "for limited Times." In Continental Paper Bag Co. v. Eastern Paper Bag Co. (1908) the patentee had never used its patented machine, and the Supreme Court still let it stop a competitor. Exclusion, the Court said, is "the very essence of the right conferred by the patent." The test of a monopoly is the public shut out, not the number of sellers. After expiry a federal rulebook does the excluding and lets no one build the design.

The Remedy

The book asks the Supreme Court for a time-shift, not deregulation. A remake is a brand-new machine built to a design whose patents have all expired. Certified by an independent engineer, it would meet the standards in force in that design's original model year, while new designs still meet today's. Millions of vehicles built to those earlier standards are still lawfully driven, sold and registered. The argument rests on the Patent and Takings Clauses, and the remedy needs no new law and no amendment.

The time-shift has a precedent in aviation. After the last patent on its original landing gear expired in 1969, Cessna built new 172 Skyhawks for 17 years to a certification basis written before 1965. Any competitor without Cessna's permission would have been held to newer ones. The FAA extended that time-shift only to the certificate's holder and those it licensed. Under the Patent Clause an expired engineering design passes to everyone; the book proposes that the time-shift follow the design.

What Households Pay and Recover

Where the exclusion applies, new models face no low-cost remakes of older designs. Measured against income, Americans pay about double what they paid before 1970 for cars, trucks, tractors, furnaces and light bulbs.

The book projects the fifth year after such a ruling. By then a household buying remakes wherever they are offered recovers a third to half of what it now spends on such goods. A household buying none still recovers about 15%, because new goods must price against the remake beside them on the lot.

Today's bill falls hardest on people who run machines for a living: the farmer, the trucker, the contractor, the restaurant owner. It also falls on the school districts, sheriffs, fire departments and hospitals that buy the same machines. More than 5 million Americans are paid to drive. Their jobs are at stake. Driverless vehicles compete on cost only because federal rules have made the human-driven vehicle so expensive.

What Else a Remake Returns

The subtitle names three returns besides money. Each goes to the buyer of a new remake, after the Court rules. The first is privacy. New cars and trucks watch their drivers with event recorders, driver-facing cameras and telematics whose records reach insurers. A remake of a design older than that equipment carries none of it. The second is work. The driverless vehicle is the watched vehicle with the human removed. Goldman Sachs Research (May 2026) puts a driverless truck's cost at about $8.56 a mile, falling toward $2.03 by 2035 and passing below the human-driven truck around 2028. The book projects a new remake of a pre-2000 truck design at about $80,000, or $2.11 a mile with the driver's wage inside it. The robot would have to beat that truck on its own money. The third is the machine itself: the pre-2000 truck that working drivers say they want most, and a car a parent can teach a teenager to drive and the teenager can afford to own.

What a Ruling Would Mean for MAHA

The pattern reaches medicine, where the book counts another 15% of commerce as hindered. A generic drug is legal to make. What keeps an old drug from a new use is FDA labeling, medical-board discipline, pharmacy-board refusals and coverage denials. The chapter *The Hindered (not Blocked) Sector* follows hydroxychloroquine, ivermectin, methylene blue, platelet-rich plasma and stem cells drawn from the patient's own body, all off patent or unpatentable. It credits 50 years of books on that fight, Robert F. Kennedy Jr.'s *The Real Anthony Fauci* (Skyhorse, 2021) among them. None argues the Patent Clause. This book supplies that argument and takes no position on whether any treatment works. It asks who owns an invention once the patent has run. A ruling for truckers and farmers would be written at the level of the Patent Clause, open to any plaintiff whose injury has the same shape. The household incandescent bulb, the subject of another chapter, is a design the public owns and may not manufacture. Sally Fallon Morell, president of the Weston A. Price Foundation and editor of its journal, *Wise Traditions*, commissioned the author's article on that bulb, "The Light Bulb Your Grandmother Bought." It runs eight pages in the forthcoming Fall 2026 issue.

What Happened in 1970, and Why Elections Have Not Fixed It

Political frustration runs high. Few voters know why American living grew expensive, when it happened, or what would reverse it. On the right a common answer is "vote the RINOs out." On the left many are joining the Democratic Socialists of America, whose membership has more than doubled in two years. On November 3, 2026, after a campaign fought over the cost of living, voters took both chambers of Congress from the Republicans and gave them to the Democrats. The book names a cause, with a date and a remedy.

The Congresses before 1970 produced the Bill of Rights, the Civil War amendments and the Civil Rights Act of 1964. They wrote bills in closed committees and voted most amendments by voice, with an occasional secret ballot, so a lobbyist could

seldom check how a member voted. In October 1970 the Legislative Reorganization Act put committee votes and amendments on the record. A voter can now see how a representative voted. So can a lobbyist, on every motion, the same day. A campaign contribution became a payment that could be checked against the vote. Registered lobbyists in Washington numbered 200 to 400 before the Act and 13,070 by 2024. The pages of law passed each year tripled, and industry lawyers drafted much of the new text. By the U.S. Treasury's Historical Debt Outstanding dataset, 80 fiscal years since 1790 had ended, before the Act, with the national debt lower than it began. None has since; the last was 1957. Some legislators are corrupt and most are not. Either kind now votes knowing the lobby will check, so donors are heard before voters. The rules that shut out remakes were written in the years that followed. The book treats the Act, signed October 26, 1970, as their root.

The chapter *Why Nobody Noticed* gives nine reasons no one objected: three facts most Americans were never taught, such as that the Patent Clause is two and a half years older than patent law, and six forces, from regulatory capture to the court deference that ended in 2024.

For Congress, the author's answers are two: an AI constitutional-impact assessment of each future bill, run by both parties, and a historically available option, Hybrid Legislative Voting. A bill that fails its contemporary recorded vote may be tried again by secret ballot. Both kinds of vote have been open to Congress since its founding under Article I, which lets each chamber keep secret such parts of its proceedings "as may in their Judgment require Secrecy," and the early Congresses used the secret ballot on occasion. The House chose its Speakers that way until 1839. Either chamber can adopt the rule by simple majority. Its aim is wider than patents: to restore what every Congress had before 1970, members' freedom to hold committee meetings in private and to vote their own judgment with no lobbyist, television camera, pundit or heckler keeping score. A vote no one can check cannot be bought, rewarded or punished. Such a Congress could again bargain across party lines, pay down debt, write its own laws and answer to voters first, on every issue it takes up.

Six Readerships, Each with Chapters of Its Own

Every household that pays the bill. Part III, "The Modern Injury: Six American Kitchen Tables," prices the injury in the driveway, the grocery cart and the light socket.

Voters who have given up on both parties. *Jefferson's Bargain*, *Why Nobody Noticed* and *Hybrid Legislative Voting* give them a cause with a date and two remedies, one from the Supreme Court and one from a voting rule either chamber of Congress can adopt, which the Constitution has allowed from the start.

MAHA readers, patients and their doctors. *The Hindered (not Blocked) Sector* and *Healthy Lighting and the Anti-Backsliding Trap* give health advocates a constitutional ground that 50 years of books on their fight have not argued.

People who run machines for a living. Truckers, farmers, contractors and mechanics get *The Trucker's Burden*, the farm-equipment pages of *How Prohibited Expired Patents Double Your Grocery Bill*, and a foreword by a third-generation trucker.



Privacy advocates and workers facing automation. They get *The Surveillance Premium* and *The Last Human Driver*, with the per-mile numbers on driverless trucks.

Lawyers, students and the officials who can file. They get the two constitutional prongs, 18 objections answered, a table of more than 95 Supreme Court rulings, and *If a President Read This Book*.

Inside the Book

This is a history book for ordinary citizens that runs through constitutional law. It is written for the roughly 130 million households that pay the bill, about $3,385 a year each by the book's conservative count. It speaks to drivers and truckers, farmers, contractors, patients and their doctors, privacy advocates, the officials who buy public fleets, and voters of any party who want a Congress that works. A Picture Section of 23 panels opens the book for readers with no legal training, and it shows the change in Congress: a committee room in 1949 and in 2013. It traces the bargain from England's Statute of

Monopolies of 1624 to 1970. It reviews the roughly 90 countries that permit remakes beside the 34 wealthy nations that block them, vehicle by vehicle and price by price. It takes the injury to the kitchen table, from the $72,495 pickup to the grocery bill. It names the 19 groups hurt most and answers 18 objections, the environmental one included. It also has three chapters of hard science fiction that show readers a reachable future.

The book makes six proposals:

1. Remakes certified by an independent engineer, not by a regulatory agency.
2. Two tests for a remake: nothing in it is still under patent, and it meets the rules of the model year the engineering examination fixes.
3. A multi-value tax deduction that rewards builders for fitting the cleanest patent-expired technology.
4. Hybrid Legislative Voting, so that fewer unconstitutional bills pass and donor pressure counts for less.
5. AI constitutional-impact assessments of future bills, run by both parties.
6. A 10-step process for directing and checking AI in serious nonfiction.

No court has ruled on the question. The Supreme Court rules only on cases brought before it, and no one has brought this one. Until 2024 such a case would have died early, because courts deferred to federal agencies' readings of unclear statutes. The Court ended that deference in Loper Bright Enterprises v. Raimondo. One party with a stake is enough: an association of truckers, farmers or contractors, a school district, a hospital, a sheriff, a governor, an attorney general, a tribal nation. A citizen's playbook shows how to ask one. Free websites generate the letters.

An open-book examination lets any reader test the argument with an AI model. All 11 AI models given it found a constitutional conflict.

The endnotes are online, free, at https://marti124.github.io/Patent_EndNotes/. They run over 260 pages: more than 570 endnotes, each ending in a live link to its source, more than 60 endnote commentaries, a glossary, and a table of the more than 95 Supreme Court rulings the book surveys, those that cut against the argument included. The book is 591 pages.

AI on the Citizen's Side

Most of what the public hears about AI concerns robots, driverless vehicles and surveillance. Using a 10-step validation process, this book puts AI to work for the citizen: it tests a federal rulebook against the Constitution and the Supreme Court's rulings. An appendix discloses the method. The author's essay "The Case for Smart Exceptions to Editorial Policies on AI" gives editors 10 conditions for telling disciplined AI-assisted nonfiction from slop. The same tools are open to any farmer, trucker, patient or doctor with a grievance against a federal rule and no legal staff.

The Author and the Foreword

The author, co-inventor of an early AI patent, spent nearly three years and over 1,470 revisions on the research. He directed a team of AI research tools and held their work to a 10-step validation process and more than 95 Supreme Court rulings. Attorneys read the drafts, among them three intellectual-property lawyers, a constitutional-law professor and a former federal energy regulatory attorney. He founded the Make American Living Affordable (MALA) community on X (over 115K members). His 113 long-form articles, 40 of them on the Patent Clause, have drawn more than 8.1 million impressions.

Gord Magill, a third-generation trucker and author of "End of the Road: Inside the War on Truckers," wrote the foreword. He has discussed his book and the industry twice on The Tucker Carlson Show (also January 2024), on C-SPAN's Washington Journal, on War Room with Stephen K. Bannon Ep. #4726 and on Fox's Ingraham Angle. He writes at Autonomous Truck(er)s and hosts the podcast Voice of GO(r)D. His podcast episode with the author, "The Unconstitutional Highway," is the best hour on the book for anyone who would rather listen than read.

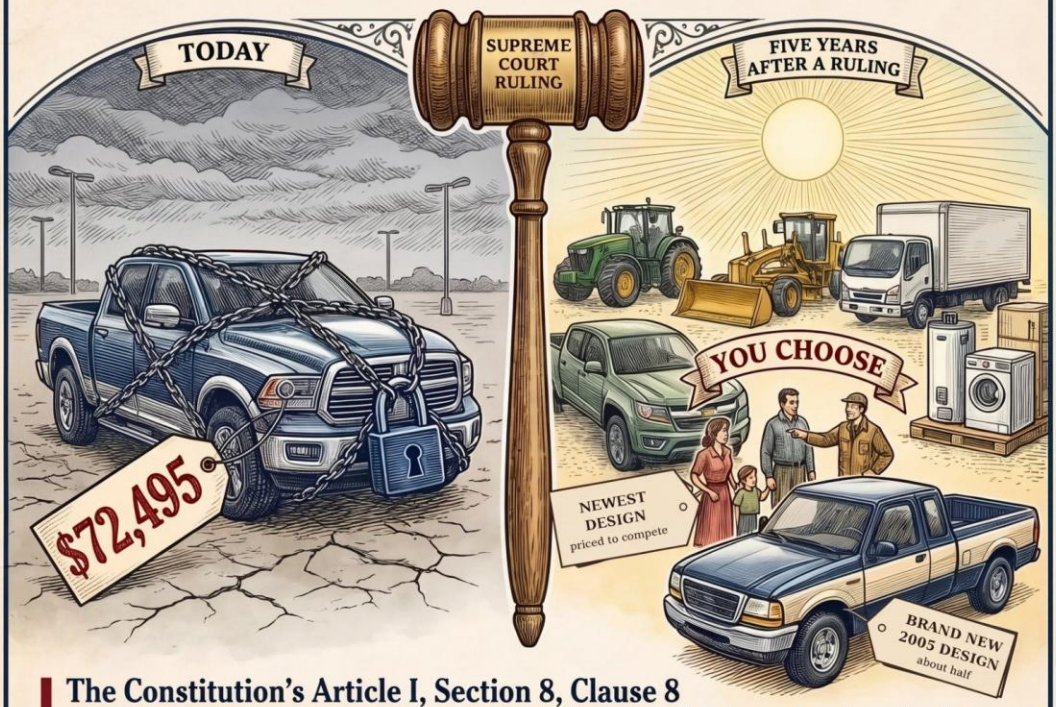
Read More

Chapter 1, the foreword, the open-book examination and letter-writing tools are free at https://marti124.github.io/Patent_BkSignup/. Readers can also sign up there to be told when the book can be ordered. The full review copy is sent on request.

PROPOSED REAR COVER

THE PATENT EXPIRED. THE PRICE DIDN'T.

WHAT ONE SUPREME COURT RULING WOULD CHANGE, AND WHEN



The Constitution's Article I, Section 8, Clause 8 was written in 1787, more than two years before the first patent law. Its words — "securing for limited Times to Authors and Inventors the exclusive Right..." — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire.

THE SAVINGS ARE REAL. THEY COME WITH THREE CONDITIONS.

1. **A Supreme Court ruling** that federal rules cannot keep an expired patent out of the expired-patent commons, where it can be made again by others. From 1787 to 1970 that bargain was honored.
2. **Your choice.** The recovery belongs to the household that buys the brand-new machine built to a proven 20-year-old design, where no patent royalties jack up the price. Never used, never rebuilt: built new.
3. **Time.** About five years, until remanufacturers are common in trucking, farming, road building, and housing. The book projects the fifth year, not the first.

> *"The Founders wrote 'limited Times' for a reason. When that back half of the deal disappears, you don't get more innovation — you get permanent protection.*
>
> — The Presidential Letters (@Cudaboy3), https://x.com/Cudaboy3/status/2049090140979536090

Roleigh Martin is a retired data engineer, co-inventor of the AI-based U.S. Patent No. 5,359,509, and founder of the 115,000-member Make American Living Affordable (MALA) community on X. **Gord Magill**, author of *End of the Road: Inside the War on Truckers*, wrote the foreword.

Scan the code for the endnotes, more than 90 Supreme Court cases, and the open-book examination: **marti124.github.io/Patent_BkSignup**